

STATE OF NEW YORK

4015--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. MAGNARELLI, SEAWRIGHT, GONZALEZ-ROJAS, GLICK, COLTON, LUPARDO, REYES, McMAHON, MEEKS, DILAN, DAVILA, CONRAD -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to increasing penalties for certain speed violations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph 3 of subdivision h of section 1180 of the vehicle
2 and traffic law, as amended by section 6 of part C of chapter 62 of the
3 laws of 2003, is amended to read as follows:

4 3. Every person convicted of a violation of paragraph two of subdivi-
5 sion (d), subdivision (f) or (g) of this section shall be punished as
6 follows:

7 (i) Where the court or tribunal records or enters that the speed upon
8 which the conviction was based exceeded the applicable speed limit by
9 not more than ten miles per hour, by a fine of not less than ninety nor
10 more than one hundred [~~fifty~~ **seventy-five** dollars;

11 (ii) Where the court or tribunal records or enters that the speed upon
12 which the conviction was based exceeded the applicable speed limit by
13 more than ten miles per hour, but not more than thirty miles per hour,
14 by a fine of not less than one hundred eighty nor more than three
15 hundred **fifty** dollars or by imprisonment for not more than thirty days,
16 or by both such fine and imprisonment, provided, however, that where the
17 vehicle is either (A) in violation of any rules or regulations involving
18 an out-of-service defect relating to brake systems, steering components
19 and/or coupling devices, or (B) transporting flammable gas, radioactive
20 materials or explosives, the fine shall be three hundred **fifty** dollars
21 or imprisonment for not more than thirty days, or both such fine and
22 imprisonment;

EXPLANATION--Matter in **italics** (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD06968-02-5

1 (iii) Where the court or tribunal records or enters that the speed
2 upon which the conviction was based exceeded the applicable speed limit
3 by more than thirty miles per hour, by a fine of not less than three
4 hundred sixty nor more than [~~six~~] seven hundred dollars or by imprison-
5 ment for not more than thirty days or by both such fine and imprison-
6 ment, provided, however, that where the vehicle is either (A) in
7 violation of any rules or regulations involving an out-of-service defect
8 relating to brake systems, steering components and/or coupling devices,
9 or (B) transporting flammable gas, radioactive materials or explosives,
10 the fine shall be [~~six~~] seven hundred dollars or imprisonment for not
11 more than thirty days, or both such fine and imprisonment.
12 § 2. This act shall take effect January 1, 2026 and shall apply to
13 violations occurring on or after such date.